

The Contingency Fund of India Act, 1950

[ACT NO. 49 OF 1950]

(*As on the 22nd July, 2025*)

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LIST OF AMENDING ACTS

1. The Contingency Fund of India (Amendment) Act, 1970 (20 of 1970).
2. The Contingency Fund of India (Amendment) Act, 1972 (10 of 1972).
3. The Contingency Fund of India (Amendment) Act, 1976 (81 of 1976).
4. The Contingency Fund of India (Amendment) Act, 1980 (4 of 1980).
5. The Contingency Fund of India (Amendment) Act, 1982 (51 of 1982).
6. The Contingency Fund of India (Amendment) Act, 1995 (1 of 1995).
7. The Contingency Fund of India (Amendment) Act, 1998 (4 of 1998).
8. The Contingency Fund of India (Amendment) Act, 1999 (29 of 1999).
9. The Finance Act, 2005 (18 of 2005).
10. The Finance Act, 2021 (13 of 2021).

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LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE CONTINGENCY FUND OF INDIA ACT, 1950

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title.
2. Establishment of the Contingency Fund of India.
3. Custody of the Contingency Fund and withdrawals therefrom.
4. Power to make rules.

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THE CONTINGENCY FUND OF INDIA ACT, 1950

ACT NO. 49 OF 1950[1]

[14*th August*, 1950.]

An Act to provide for the establishment and maintenance of Contingency Fund.

BE it enacted by Parliament as follows:—

1. Short title.—This Act may be called the Contingency Fund of India Act, 1950.

2. Establishment of the Contingency Fund of India.—[2][(*1*)] There shall be established a Contingency Fund in the nature of an imprest entitled the Contingency Fund of India, into which shall be paid from and out of the Consolidated Fund of India a sum of [3][fifty crores of rupees]:

[4][Provided that during the period beginning on the 28th day of July, 1999 and ending on the 31st day of March, 2000, this section shall have effect subject to the modification that for the words "fifty crores of rupees", the words "five hundred and fifty crores of rupees" shall be substituted.]

[5][(*2*) On and from the date on which the Finance Bill, 2005 receives the assent of the President, the sum which shall be paid from and out of the Consolidated Fund of India into the Contingency Fund of India under sub-section (*1*) shall stand enhanced to five hundred crores of rupees.]

[6][(*3*) On and from the date on which the Finance Bill, 2021 receives the assent of the President, the sum which shall be paid from and out of the Consolidated Fund of India into the Contingency Fund of India under sub-section (*2*) shall stand enhanced to thirty thousand crores of rupees.]

3. Custody of the Contingency Fund and withdrawals therefrom.—The Contingency Fund of India shall be held on behalf of the President by a Secretary to the Government of India in the Ministry of Finance, and no advances shall be made out of such fund except for the purposes of meeting unforeseen expenditure pending authorisation of such expenditure by Parliament under appropriations made by law.

4. Power to make rules.—[7][(*1*)] For the purpose of carrying out the objects of this Act, the Central Government may, [8][by notification in the Official Gazette,] make rules regulating all matters connected with or ancillary to the custody of, the payment of moneys into and the withdrawal of moneys from, the Contingency Fund of India.

[8][(*2*) Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

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1. The Act has been extended to Goa, Daman and Diu by Reg. 12 of 1962, s. 3 and Sch..; Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Schedule I; and Pondicherry by Reg. 7 of 1963, s. 3 and Sch. I.
2. S. 2 numbered as sub-section (*1*) by Act 18 of 2005, s. 115 (w.e.f. 13-5-2005).
3. Subs. by Act 81 of 1976, s. 2, for "thirty crores of rupees" (w.e.f. 26-8-1976).
4. Subs. by Act 29 of 1999, s. 2, for "the Provisos" (w.e.f. 17-11-1999).
5. Ins. by Act 18 of 2005, s. 115 (w.e.f. 13-5-2005).
6. Ins. by Act 13 of 2021, s. 127 (w.e.f. 28-3-2021).
7. S.4 renumbered as sub-section (*1*) by Act 51 of 1982, s. 2 (w.e.f. 20-10-1982).
8. Ins. by s. 2, *ibid.* (w.e.f. 20-10-1982).

STATEMENT OF OBJECTS AND RESONS

"Pursuant to Articles 267(1) and 283(1) of the Constitution, this Bill seeks to provide for the establishment of the Contingency Fund of India, and for the custody of, the payment of moneys into and the withdrawal of moneys from, such fund. It is proposed to place a sum of fifteen crores of rupees in the Fund, which will be administered by the Finance Ministry on behalf of the President. The advances will be resumed to the Fund as soon as the necessary supplementary funds have been authorised by Parliament through Supplementary Appropriation Acts or at the end of the Financial Year."

NEW DELHI; C.D.DESHMUKH.
The 28*th July*, 1950.

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